

23STCV28732 23STCV28732

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-20

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Case Number: 23STCV28732 Hearing Date: July 20, 2026 Dept: 407

Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: N/A

CASE: Casetta Signater v. Keppel Union School District

CASE NO.: 23STCV28732

DEFENDANT

KEPPEL UNION SCHOOL DISTRICT'S EX PARTE APPLICATION FOR AN ORDER SHORTENING TIME ON HEARING FOR ITS (1) MOTION TO BE RELIEVED FROM THE COURT'S ORDER REGARDING ITS MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES AND REQUEST FOR REHEARING ON ITS MOTION FOR SUMMARY JUDGMENT, OR IN THE ALTERNATIVE, SUMMARY ADJUDICATION OF ISSUES AND (2) MOTION AND MOTION TO COMPEL THE DEPOSITION OF THE PERSON MOST KNOWLEDGABLE FOR WONDERFUL COLLEGE PREP ACADEMY – H.R. AND REQUEST FOR PRODUCTION OF DOCUMENTS

I. INTRODUCTION

Defendant

Keppel Union School District files this ex parte application (1) to be relieved from the court's order regarding its motion for summary judgment (MSJ) and request for hearing on its MSJ, and (2) to shorten time for the hearing on Defendant's motion to compel the deposition of the person most knowledgeable (PMK) for Wonderful College Prep Academy – H.R. Defendant argues the requested relief is warranted because (1) Defense Counsel inadvertently calendared and

assumed the hearing for the MSJ would begin at 9:00 a.m., not 8:30 a.m., and Defendant was prepared to present meritorious arguments against certain portions of the court's tentative ruling, and (2) the court denied without prejudice Defendant's motion to compel PMK deposition on July 1, 2026 for failure to provide proof of service on the nonparty deponent.

For the reasons stated herein, each
Ex Parte Application is DENIED.

II. DISCUSSION

Pursuant
to Code of Civil Procedure section 166(a)(4), the court rules on Defendant's Ex Parte Applications in chambers.

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'A court will not grant ex parte relief 'in any but the plainest and most certain of cases.' (People ex rel. Allstate Ins. Co. v. Suh (2019) 37 Cal.App.5th 253, 257.) Substantively, '[a]n applicant must make an affirmative factual showing in a declaration containing competent testimony based on personal knowledge of irreparable harm, immediate danger, or any other statutory basis for granting relief ex parte.' (Cal. Rules of Court, rule 3.1202(c) . . . 'A trial court should deny an ex parte application absent the requisite showing.' (People ex rel. Allstate Ins. Co., at p. 257.)" (Newsom v. Superior Court (Sutter County) (2020) 51 Cal.App.5th 1093.)

A. Relief from Ruling On MSJ

Defendant fails to make an affirmative factual showing of irreparable harm or immediate danger to merit ex parte relief. Defendant's notice of motion for its MSJ identifies 8:30 a.m. as the time of hearing. Defendant knew when the MSJ would be called and failed to timely appear. Given these facts, there is no excusable neglect. The court also notes that Defendant filed an identical ex parte application on June 26, 2026 which this court denied on June 29, 2026. In essence, Defendant seeks reconsideration of the court's June 29 ruling yet does not provide any new grounds to merit reconsideration of that ruling.

B.

Shortening Time on Motion to Compel PMK Deposition

Defendant fails to demonstrate the necessary exigent
circumstances or irreparable harm to shorten time on its motion to compel.

III. CONCLUSION

For
the forgoing reasons, Defendant's ex parte
application is Denied.

The clerk of the court to give notice.

Dated: July 20, 2026

Brock T. Hammond

Judge of the
Superior Court